



CHAPTER 17.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.
[10th April 1941.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of such number as His Majesty may deem necessary.

And whereas under the Air Force (Constitution) Act, 1917, 7 & 8 Geo. 5. His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of such number as His Majesty may deem necessary. c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

A.D. 1941.
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And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-one on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1941.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and forty-one, to the thirtieth day of April, one thousand nine hundred and forty-two, both inclusive ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and forty-one, to the thirty-first day of July, one thousand nine hundred and forty-two, both inclusive.

(2) Notwithstanding anything in subsection (1) of section fifteen of the Army and Air Force (Annual) Act, 1932, the amendments of the Army Act and of the Air Force Act made by this Act shall come into operation in all places as from the thirtieth day of April, nineteen hundred and forty-one.

22 & 23
Geo. 5. c. 22.

(3) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

3. Section one hundred and eight A of the Army Act and section one hundred and eight A of the Air Force Act (which provide for billeting in cases of emergency) shall respectively have effect as if at the end of paragraph (b) of subsection (3) thereof (which requires certain powers and duties to be exercised and performed by chief officers of police), there were inserted the following proviso :

Amendment
of s. 108A of
Army Act
and s. 108A of
Air Force
Act.

“ Provided that a chief officer of police may, to such extent and subject to such restrictions as he thinks proper, authorise any individual constable, or any class of constables, to exercise and perform on his behalf all or any of the said powers and duties : ”.

4. In subsection (1) of section forty-seven of the Army Act (which specifies the authorities who have power to deal summarily with charges against officers and warrant officers), for the words “ any officer (not under the rank of major-general) appointed for the purpose by the Army Council ” there shall be substituted the words “ any such officer (not under the rank of major-general) as may be prescribed or as may be appointed for the purpose by the Army Council ”.

Amendment
of s. 47 of
Army Act.

5. The proviso to paragraph (d) of subsection (1) of section fifty-four of the Army Act (which prohibits the carrying into effect of a sentence of death or penal servitude awarded by a field general court-martial unless confirmed by the authority therein specified) shall have effect subject to the following amendments :—

Amendment
of s. 54 of
Army Act.

- (a) for the words “ the general or field officer ” there shall be substituted the words “ the officer, not being below the rank of field officer, flag officer or squadron leader ” ; and
- (b) at the end there shall be added the words “ whether such officer is an officer of the army, navy or air force ”.

Amendment
of s. 190 of
Army Act.

6.—(1) For paragraph (5) of section one hundred and ninety of the Army Act there shall be substituted the following paragraph :—

“(5) The expression ‘ non-commissioned officer ’ means a non-commissioned officer or acting non-commissioned officer of His Majesty’s forces, or any arm, branch, or part thereof, and includes also any non-commissioned officer or acting non-commissioned officer of His Majesty’s air forces or of a Dominion force who is for the time being subject to military law.”

(2) After the said paragraph (5) there shall be inserted the following paragraph :—

“(5A) The expression ‘ warrant officer ’ includes any warrant officer of His Majesty’s air forces or of a Dominion force who is for the time being subject to military law.”

Amendment
of s. 190 of
the Air Force
Act.

7.—(1) For paragraph (5) of section one hundred and ninety of the Air Force Act there shall be substituted the following paragraph :—

“(5) The expression ‘ non-commissioned officer ’ means a non-commissioned officer or acting non-commissioned officer of the air force, or any arm, branch or part thereof and includes also—

- (a) an air-force schoolmaster when not a warrant officer ;
- (b) a petty officer or acting petty officer of His Majesty’s naval forces who is for the time being subject to this Act ; and
- (c) a non-commissioned officer or acting non-commissioned officer of His Majesty’s military forces or of a Dominion force or of a force raised in India or Burma who is for the time being subject to this Act.”

(2) After the said paragraph (5) there shall be inserted the following paragraph :—

“(5A) The expression ‘ warrant officer ’ includes any warrant officer of His Majesty’s military forces or of a Dominion force or of a force raised in India or Burma who is for the time being subject to this Act.”

Amendment
of s. 15 of
22 & 23 Geo. 5.
c. 22.
2 & 3 Geo. 6.
c. 62.

8. Section fifteen of the Army and Air Force (Annual) Act, 1932 (which relates to the construction and printing of amendments to the Army Act and the Air Force Act) shall have effect, during the continuance in force of the Emergency Powers (Defence) Act, 1939, as if the references in subsection (2) of

the said section to any enactment (whether passed before or after the Army and Air Force (Annual) Act, 1932) and to any enactment for the time being in force, respectively, and the reference in subsection (3) of that section to any other Act (whether passed before or after the said Act), included in each case a reference to any Regulation made under the Emergency Powers (Defence) Acts, 1939 and 1940.

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